

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**[PROPOSED] ORDER GRANTING
LEAVE (SAC / TAC)
— TIER 1 AND TIER 2 DISPOSITION**

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

FRANCISCUS DYLAN ROSARIO,
Plaintiff,

v.

CSAA INSURANCE EXCHANGE, and DOES 1 through 50, inclusive,
Defendants.

Case No. CGC-25-631802

Underlying Action: Rosario v. Abdelhalim, Case No. CGC-21-594102

ORDER

The Motion of Plaintiff FRANCISCUS DYLAN ROSARIO for Leave to File Second Amended Complaint, as supplemented by Plaintiff's Notice of Supplemental Allegations and Errata, having come on regularly for hearing on **April 30, 2026**, at **9:00 a.m.**, in Department **302** of the above-entitled Court;

Plaintiff appearing in pro per; Defendant appearing through counsel of record;

The Court having considered the moving papers, Plaintiff's Notice of Supplemental Allegations and Errata, any opposition, any reply, the arguments of the parties, and the file in this action;

GOOD CAUSE APPEARING THEREFOR,

TIER 1 — PRIMARY DISPOSITION (SECOND AMENDED COMPLAINT)

IT IS HEREBY ORDERED that:

1. Plaintiff's Motion for Leave to File Second Amended Complaint (filed April 16, 2026; heard April 30, 2026), as supplemented, is **GRANTED**.
2. The Revised Proposed Second Amended Complaint lodged with Plaintiff's Notice of Supplemental Allegations and Errata is deemed **FILED** as of the date of this Order.
3. Plaintiff shall **SERVE** the Second Amended Complaint on all parties within **ten (10) days** of the date of this Order.
4. Defendant shall have **thirty (30) days** from the date of service of the Second Amended Complaint to respond thereto.
5. Defendant's Motion to Strike the First Amended Complaint (set May 19, 2026) is hereby **TAKEN OFF CALENDAR** as moot.

TIER 2 — ALTERNATIVE SELF-EXECUTING DISPOSITION (THIRD AMENDED COMPLAINT)

IN THE ALTERNATIVE, if Tier 1 is **DENIED** in whole, or the Court finds that the Second Amended Complaint does not cure the defects raised in Defendant's Motion to Strike:

6. Plaintiff's Motion for Leave to File Third Amended Complaint (the TAC-RESPONSE packet on file in this action) is hereby **GRANTED** in the same Order without further motion practice.
7. Upon such denial of Tier 1, the Third Amended Complaint in the form lodged at 802-MOTION-STRIKE-APR-2 is deemed **FILED** as of the date of this Order.
8. Service and response deadlines per paragraphs 3–4 shall apply mutatis mutandis to the Third Amended Complaint.
9. Defendant's Motion to Strike is **TAKEN OFF CALENDAR** as moot regardless of whether Tier 1 or Tier 2 applies.

IT IS SO ORDERED.

Dated: _____

Judge of the Superior Court

Submitted by:

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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